

ADDRESS OF PRESIDENT ROOSEVELT AT
KEOKUK, IOWA ❧ ❧ OCTOBER 1, 1907



WASHINGTON
GOVERNMENT PRINTING OFFICE
1907

ADDRESS OF PRESIDENT ROOSEVELT AT
KEOKUK, IOWA ❧ ❧ OCTOBER 1, 1907



WASHINGTON
GOVERNMENT PRINTING OFFICE
1907

The Project Gutenberg eBook of Address of President Roosevelt at Keokuk, Iowa, October 1, 1907

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Address of President Roosevelt at Keokuk, Iowa, October 1, 1907

Author: Theodore Roosevelt

Release date: May 18, 2022 [eBook #68119]

Most recently updated: October 18, 2024

Language: English

Original publication: United States: Government Printing Office, 1907

Other information and formats: www.gutenberg.org/ebooks/68119

Credits: Donald Cummings and the Online Distributed Proofreading Team at <https://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK ADDRESS OF
PRESIDENT ROOSEVELT AT KEOKUK, IOWA, OCTOBER 1, 1907 ***

**ADDRESS OF PRESIDENT
ROOSEVELT AT
KEOKUK, IOWA ❧ ❧ OCTOBER 1,
1907**



WASHINGTON
GOVERNMENT PRINTING OFFICE
1907

MEN AND WOMEN OF IOWA:

I am glad indeed to see you and to speak to you in this thriving city of your great and prosperous State. I believe with all my heart in the people of Iowa, for I think that you are good, typical Americans, and that among you there has been developed to a very high degree that body of characteristics which we like to regard as distinctively American.

During the last few years we of the United States have been forced to consider very seriously certain economic problems. We have made a beginning in the attempt to deal with the relations of the National Government—that is, with the relations of the people of the country—to the huge and wealthy corporations, controlled for the most part by a few very rich men, which are engaged in interstate business—especially the great railway corporations. You know my views on this matter. You know that I believe that the National Government, in the interests of the people, should assume much the same supervision and control over the management of the interstate common carriers that it now exercises over the national banks. You know furthermore that I believe that this supervision and control should be exercised in a spirit of rigid fairness toward the corporations, exacting justice from them on behalf of the people but giving them justice in return.

Recently I have been reading the work of the eminent Italian scholar Ferrero on the history of the Roman Republic, when the life of the Roman state had become that of a complex and luxurious industrial civilization. I am happy to say that the differences between that civilization and our own are more striking than the resemblances; and there is no warrant for our being drawn into any pessimistic comparison between the two civilizations. But there is every reason why we should study carefully the past in order to draw from it lessons for use in the present. One of the most striking features of the years which saw the downfall of the Roman Republic was the fact that the political life of Rome became split between two camps, one containing the rich who wished to exploit the poor, and the other the poor who wished to plunder the rich. Naturally, under such circumstances, the

public man who was for the moment successful tended to be either a violent reactionary or a violent demagogue. Any such condition of political life is as hopelessly unhealthy now as it was then. I believe so implicitly in the future of our people, because I believe that the average American citizen will no more tolerate government by a mob than he will tolerate government by a plutocracy; that he desires to see justice done to and justice exacted from rich man and poor man alike. We are not trying to favor any man at the expense of his fellows. We are trying to shape things so that as far as possible each man shall have a fair chance in life; so that he shall have, so far as by law this can be accomplished, the chance to show the stuff that there is in him. We have no intention of trying to work for the impossible and undesirable end of giving to the lazy, the thriftless, the weak, and the vicious, the reward that belongs to, and in the long run can only come to, the hard working, the thrifty, the resolute, and the honest. But we do wish to see that the necessary struggle in life shall be carried on under genuinely democratic conditions; that, so far as human action can safely provide it, there shall be an approximately fair start; that there shall be no oppression of the weak, and that no man shall be permitted to acquire or to use a vast fortune by methods or in ways that are tortuous and dishonest.

Therefore we need wise laws, and we need to have them resolutely administered. We can get such laws and such administration only if the people are alive to their interests. The other day I listened to an admirable sermon by Bishop Johnston, of western Texas. His theme was that the vital element in judging any man should be his conduct, and neither his position nor his pretensions; and, furthermore, that freedom could only stay with a people which has the habit of self-mastery. As he said, the price of liberty is not only eternal vigilance, but eternal virtue; and I may add, eternal common sense. Each man here knows that he himself has been able to use his freedom to advantage only provided that he could master himself, that he could control his own passions and direct his own faculties. Each of you fathers and mothers here knows that if your sons are to do well in the world they must know how to master themselves. Every man must have a master; if he is not his own master, then somebody else will be. This is just as true of public life as of private life. If we can not master ourselves, control ourselves, then sooner or later we shall have to submit to outside control; for there must be control somewhere.

One way of exercising such control is through the laws of the land. Ours is a government of liberty, but it is a government of that orderly liberty which comes by and through the honest enforcement of and obedience to the law. At intervals during the last few months the appeal has been made to me not to enforce the law against certain wrongdoers of great wealth because to do so would interfere with the business prosperity of the country. Under the effects of that kind of fright which when sufficiently acute we call panic, this appeal has been made to me even by men who ordinarily behave as decent citizens. One newspaper which has itself strongly advanced this view gave prominence to the statement of a certain man of great wealth to the effect that the so-called financial weakness "was due entirely to the admitted intention of President Roosevelt to punish the large moneyed interests which had transgressed the laws." I do not admit that this has been the main cause of any business troubles we have had; but it is possible that it has been a contributory cause. If so, friends, as far as I am concerned it must be accepted as a disagreeable but unavoidable feature in a course of policy which as long as I am President will not be changed. In any great movement for righteousness, where the forces of evil are strongly intrenched, it is unfortunately inevitable that some unoffending people should suffer in company with the real offenders. This is not our fault. It is the fault of those to whose deceptive action these innocent people owe their false position. A year or two ago certain representatives of labor called upon me and in the course of a very pleasant conversation told me that they regarded me as "the friend of labor." I answered that I certainly was, and that I would do everything in my power for the laboring man *except anything that was wrong*. I have the same answer to make to the business man. I will do everything I can do to help business conditions, except anything that is wrong. And it would be not merely wrong but infamous to fail to do all that can be done to secure the punishment of those wrongdoers whose deeds are peculiarly reprehensible because they are not committed under the stress of want. Whenever a serious effort is made to cut out what is evil in our political life, whether the effort takes the shape of warring against the gross and sordid forms of evil in some municipality, or whether it takes the shape of trying to secure the honest enforcement of the law as against very powerful and wealthy people, there are sure to be certain individuals who demand that the movement stop because it may hurt business. In each case the answer must be that we earnestly hope and

believe that there will be no permanent damage to business from the movement, but that if righteousness conflicts with the fancied needs of business, then the latter must go to the wall. We can not afford to substitute any other test for that of guilt or innocence, of wrongdoing or welldoing, in judging any man. If a man does well, if he acts honestly, he has nothing to fear from this Administration. But so far as in me lies the corrupt politician, great or small, the private citizen who transgresses the law—be he rich or poor—shall be brought before the impartial justice of a court. Perhaps I am most anxious to get at the politician who is corrupt, because he betrays a great trust; but assuredly I shall not spare his brother corruptionist who shows himself a swindler in business life; and, according to our power, crimes of fraud and cunning shall be prosecuted as relentlessly as crimes of brutality and physical violence.

We need good laws and we need above all things the hearty aid of good citizens in supporting and enforcing the laws. Nevertheless, men and women of this great State, men and women of the Middle West, never forget that law and the administration of law, important though they are, must always occupy a wholly secondary place as compared with the character of the average citizen himself. On this trip I shall speak to audiences in each of which there will be many men who fought in the civil war. You who wore the blue and your brothers of the South who wore the gray know that in war no general no matter how good, no organization no matter how perfect, can avail if the average man in the ranks has not got the fighting edge. We need the organization, the preparation; we need the good general; but we need most the fighting edge in the individual soldier. So it is in private life. We live in a rough, workaday world, and we are yet a long way from the millennium. We can not as a nation and we can not as individuals afford to cultivate only the gentler, softer qualities. There must be gentleness and tenderness—the strongest men are gentle and tender—but there must also be courage and strength. I have a hearty sympathy with those who believe in doing all that can be done for peace; but I have no sympathy at all with those who believe that in the world as it now is we can afford to see the average American citizen lose the qualities that in their sum make up a good fighting man. You men must be workers who work with all your heart and strength and mind at your several tasks in life; and you must also be able to fight at need. You women have even higher and more difficult duties; for I honor no man, not even the soldier who fights for

righteousness, quite as much as I honor the good woman who does her full duty as wife and mother. But if she shirks her duty as wife and mother then she stands on a par with the man who refuses to work for himself and his family, for those dependent upon him, and who in time of the nation's need refuses to fight. The man or woman who shirks his or her duty occupies a contemptible position. You here are the sons and daughters of the pioneers. I preach to you no life of ease. I preach to you the life of effort, the life that finds its highest satisfaction in doing well some work that is well worth doing.

So much for what concerns every man and every woman in this country. Now, a word or two as to matters which are of peculiar interest to this region of our country.

Since I have been President I have traveled in every State of this Union, but my traveling has been almost entirely on railroads, save now and then by wagon or on horseback. Now I have the chance to try traveling by river; to go down the greatest of our rivers, the Father of Waters. A good many years ago when I lived in the Northwest I traveled occasionally on the Upper Missouri and its tributaries; but then we went in a flatboat and did our own rowing and paddling and poling. Now I am to try a steamboat. I am a great believer in our railway system; and the fact that I am very firm in my belief as to the necessity of the Government exercising a proper supervision and control over the railroads does not in the least interfere with the other fact that I greatly admire the large majority of the men in all positions, from the top to the bottom, who build and run them. Yet, while of course I am anxious to see these men, and therefore the corporations they represent or serve, achieve the fullest measure of legitimate prosperity, nevertheless as this country grows I feel that we can not have too many highroads, and that in addition to the iron highroads of our railway system we should also utilize the great river highways which have been given us by nature. From a variety of causes these highways have in many parts of the country been almost abandoned. This is not healthy. Our people, and especially the representatives of the people in the National Congress, should give their most careful attention to this subject. We should be prepared to put the nation collectively back of the movement to improve them for the nation's use. Our knowledge at this time is not such as to permit me to go into details, or to say definitely just what the nation should do; but most

assuredly our great navigable rivers are national assets just as much as our great seacoast harbors. Exactly as it is for the interest of all the country that our great harbors should be fitted to receive in safety the largest vessels of the merchant fleets of the world, so by deepening and otherwise our rivers should be fitted to bear their part in the movement of our merchandise; and this is especially true of the Mississippi and its tributaries, which drain the immense and prosperous region which makes in very fact the heart of our nation; the basin of the Great Lakes being already united with the basin of the Mississippi, and both regions being identical in their products and interests. Waterways are peculiarly fitted for the transportation of the bulky commodities which come from the soil or under the soil; and no other part of our country is as fruitful as is this in such commodities.

You in Iowa have many manufacturing centers, but you remain, and I hope you will always remain, a great agricultural State. I hope that the means of transporting your commodities to market will be steadily improved; but this will be of no use unless you keep producing the commodities, and in the long run this will largely depend upon your being able to keep on the farm a high type of citizenship. The effort must be to make farm life not only remunerative but attractive, so that the best young men and girls will feel inclined to stay on the farm and not to go to the city. Nothing is more important to this country than the perpetuation of our system of medium-sized farms worked by their owners. We do not want to see our farmers sink to the condition of the peasants of the Old World, barely able to live on their small holdings, nor do we want to see their places taken by wealthy men owning enormous estates which they work purely by tenants and hired servants.

At present the ordinary farmer holds his own in the land as against any possible representative of the landlord class of farmer—that is, of the men who would own vast estates—because the ordinary farmer unites his capital, his labor, and his brains with the making of a permanent family home, and thus can afford to hold his land at a value at which it can not be held by the capitalist, who would have to run it by leasing it or by cultivating it at arm's length with hired labor. In other words, the typical American farmer of to-day gets his remuneration in part in the shape of an independent home for his family, and this gives him an advantage over an absentee landlord. Now, from the standpoint of the nation as a whole it is

preeminently desirable to keep as one of our chief American types the farmer, the farm home maker, of the medium-sized farm. This type of farm home is one of our strongest political and social bulwarks. Such a farm worked by the owner has proved by experience the best place in which to breed vigorous leaders alike for country and city. It is a matter of prime economic and civic importance to encourage this type of home-owning farmer.

Therefore, we should strive in every way to aid in the education of the farmer for the farm, and should shape our school system with this end in view; and so vitally important is this that, in my opinion, the Federal Government should cooperate with the State governments to secure the needed change and improvement in our schools. It is significant that both from Minnesota and Georgia there have come proposals in this direction in the appearance of bills introduced into the National Congress. The Congressional land grant act of 1852 accomplished much in establishing the agricultural colleges in the several States, and therefore in preparing to turn the system of educational training for the young into channels at once broader and more practicable—and what I am saying about agricultural training really applies to all industrial training. But the colleges can not reach the masses, and it is essential that the masses should be reached. Such agricultural high schools as those in Minnesota and Nebraska for farm boys and girls, such technical high schools as are to be found, for instance, in both St. Louis and Washington, have by their success shown that it is entirely feasible to carry in practical fashion the fundamentals of industrial training into the realms of our secondary schools. At present there is a gap between our primary schools in country and city and the industrial collegiate courses, which must be closed, and if necessary the Nation must help the State to close it. Too often our present schools tend to put altogether too great a premium upon mere literary education, and therefore to train away from the farm and the shop.

We should reverse this process. Specific training of a practical kind should be given to the boys and girls who when men and women are to make up the backbone of this nation by working in agriculture, in the mechanical industries, in arts and trades; in short, who are to do the duty that should always come first with all of us, the duty of home-making and home-keeping. Too narrow a literary education is, for most men and

women, not a real education at all; for a real education should fit people primarily for the industrial and home-making employments in which they must employ the bulk of their activities. Our country offers unparalleled opportunities for domestic and social advancement, for social and economic leadership in the world. Our greatest national asset is to be found in the children. They need to be trained to high ideals of everyday living, and to high efficiency in their respective vocations; we can not afford to have them trained otherwise, and the nation should help the States to achieve this end.

Now, men of Iowa, I want to say just a word on a matter that concerns not the States of the Mississippi Valley itself, but the States west of them, the States of the Great Plains and the Rocky Mountains. Unfortunately, I am not able on this present trip to visit those States, or I should speak to their own people on the point to which I now intend to allude; but after all anything that affects a considerable number of Americans who live under one set of conditions, must be of moment to all other Americans, for never forget, friends, that in the long run we shall all go up or go down together.

The States of the high plains and of the mountains have a peculiar claim upon me, because for a number of years I lived and worked in them, and I have that intimate knowledge of their people that comes under such conditions. In those States there is need of a modification of the land laws that have worked so well in the well-watered fertile regions to the eastward, such as those in which you here dwell. The one object in all our land laws should always be to favor the actual settler, the actual home maker, who comes to dwell on the land and there to bring up his children to inherit it after him. The Government should part with its title to the land only to the actual home-maker—not to the profit-maker, who does not care to make a home. The land should be sold outright only in quantities sufficient for decent homes—not in huge areas to be held for speculative purposes or used as ranches, where those who do the actual work are merely tenants or hired hands. No temporary prosperity of any class of men could in the slightest degree atone for failure on our part to shape the laws so that they may work for the permanent good of the home-maker. This is fundamental, gentlemen, and is simply carrying out the idea upon which I dwell in speaking to you of your own farms here in Iowa. Now in many States where the rainfall is light it is a simple absurdity to expect any man to live, still less to bring up a family, on one hundred and sixty acres. Where we are able

to introduce irrigation, the homestead can be very much less in size—can, for instance, be forty acres; and there is nothing that Congress has done during the past six years more important than the enactment of the national irrigation law. But where irrigation is not applicable and the land can only be used for grazing, it may be that you can not run more than one steer to ten acres, and it is not necessary to be much of a mathematician in order to see that where such is the case a homestead of one hundred and sixty acres will not go far toward the support of a family. In consequence of this fact, homesteaders do not take up the lands in the tracts in question. They are left open for anybody to graze upon that wishes to. The result is that the men who use them moderately and not with a view to exhausting their resources are at the mercy of those who care nothing for the future and simply intend to skin the land in the present. For instance, the small sheep farmer who has a home and who wishes that home to pass on to his children improved in value will naturally run his flock so that the land will support it, not only today, but ten years hence; but a big absentee sheep owner, who has no home on the land at all, but simply owns huge migratory flocks of sheep, may well find it to his profit to drive them over the small sheep farmer's range and eat it all out. He can then drive his flocks on, whereas the small man can not. Of course, to permit such a state of things is not only evil for the small man, but is destructive of the best interests of the country. Substantially the same conditions obtain as regards cattle. The custom has therefore grown up of fencing great tracts of Government land without warrant of law. The men who fenced this land were sometimes rich men, who, by fencing it, kept out actual settlers and thereby worked evil to the country. But in many cases, whether they were large men or small men, their object was not to keep out actual settlers, but to protect themselves and their own industry by preventing overgrazing of the range on the part of reckless stock owners who had no place in the permanent development of the country and who were indifferent to everything except the profits of the moment. To permit the continuance of this illegal fencing inevitably tended to very grave abuses, and the Government has therefore forced the fencers to take down their fences. In doing this we have not only obeyed and enforced the law, but we have corrected many flagrant abuses. Nevertheless, we have also caused hardship, which, though unavoidable, I was exceedingly unwilling to cause. In some way or other we must provide for the use of the public range under conditions which shall inure primarily

to the benefit of the actual settlers on or near it, and which shall prevent its being wasted. This means that in some shape or way the fencing of pasture land must be permitted under restrictions which will safeguard the rights of the actual settlers. I desire to act as these actual settlers wish to have me in this matter. I wish to find out their needs and desires and then to try to put them into effect. But they must take trouble, must look ahead to their own ultimate and real good, must insist upon being really represented by their public men, if we are to have a good result. A little while ago I received a very manly and sensible letter from one of the prominent members of the Laramie County, Wyo., Cattle and Horse Growers' Association. My correspondent remarked incidentally in his letter, "I am a small ranchman, and have to plow and pitch hay myself," and then went on to say that the great majority of their people had complied with the governmental order, had removed their fences and sold their cattle, but that they must get some kind of a lease law which would permit them to graze their stock under proper conditions or else it would be ruinous to them to continue in the business. The thing I have most at heart as regards this subject is to do whatever will be of permanent benefit to just exactly the people for whom this correspondent of mine spoke—the small ranchmen who have to plow and pitch hay themselves. All I want to do is to find out what will be to their real benefit, for that is certain to be to the benefit of the country as a whole. It may be that we can secure their interests best by permitting all homesteaders in the dry country to inclose, individually or a certain number of them together, big tracts of range for summer use, the tracts being proportioned to the number of neighboring homesteaders who wish to run their cattle upon it. It may be that parts of the range will only be valuable for companies that can lease it and put large herds on it; for the way properly to develop a region is to put it to those uses to which it is best adapted. The amount to be paid for the leasing privilege is to me a matter of comparative indifference. The Government does not wish to make money out of the range, but simply to provide for the necessary supervision that will prevent its being eaten out or exhausted; that is, that will secure it undamaged as an asset for the next generation, for the children of the present home makers. Of course we must also provide enough to pay the proper share of the county taxes. I am not wedded to any one plan, and I am willing to combine several plans if necessary. But the present system is wrong, and I hope to see, in all the States of the Great Plains and the

Rockies, the men like my correspondent of the Laramie County Cattle and Horse Growers' Association, the small ranchmen "who plow and pitch hay themselves," seriously take up this matter and make their representatives in Congress understand that there must be some solution, and that this solution shall be one which will secure the greatest permanent well-being to the actual settlers, the actual home makers. I promise with all the strength I have to cooperate toward this end.



Transcriber's Notes:

Punctuation and spelling inaccuracies were silently corrected.

Archaic and variable spelling has been preserved.

Variations in hyphenation and compound words have been preserved.

*** END OF THE PROJECT GUTENBERG EBOOK ADDRESS OF
PRESIDENT ROOSEVELT AT KEOKUK, IOWA, OCTOBER 1, 1907 ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.